

MEMBERSHIP INTEREST PURCHASE AGREEMENT

This Membership Interest Purchase Agreement (this “**Agreement**”), dated as of the 17 day of April, 2026, (the “**Effective Date**”), is entered into between Tyler Hospice Hold, LLC, a Texas limited liability company (“**Buyer**”), HICKORY HOSPICE LLC, a Texas limited liability company (the “**Company**”) and each of the entities identified on **Schedule 2.02** as a member of the Company (individually, a “**Seller**” and collectively, the “**Sellers**”). Buyer, Sellers, and the Company may be referred to herein as the “**Parties**” or each, individually, as a “**Party**”).

Recitals

Whereas, each Seller owns the membership interests of the Company set forth opposite such Seller’s name on **Schedule 2.02**, which, in the aggregate, constitute one hundred percent (100%) of the issued and outstanding ownership interests in the Company (the “**Membership Interest**”); and

Whereas, Buyer desires to purchase from the Sellers, and the Sellers desire to sell to Buyer, the Membership Interest, subject to the terms and conditions set forth herein.

Now, Therefore, intending to be legally bound and in consideration of the mutual representations, warranties, covenants, agreements, and conditions contained in this Agreement and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties hereto agree as follows:

Article 1. Purchase and Sale

1.01 **Purchase and Sale.** Upon the terms and subject to the conditions set forth in this Agreement, at the Closing (as defined in Section 1.04), each Seller shall sell, assign, transfer, and deliver to Buyer, and Buyer shall purchase from each Seller, all of Seller’s right, title, and interest in and to the Membership Interest owned by each such Seller, free and clear of any mortgage, pledge, lien, charge, security interest, or other encumbrance (“**Encumbrance**”), for the consideration specified in Section 1.02.

1.02 **Purchase Price.** The aggregate consideration for the Membership Interest shall be three hundred thousand dollars (\$300,000) (the “**Purchase Price**”), which shall be payable as follows:

- (a) **Installment Payments.** The Purchase Price shall be paid in twelve (12) equal monthly installments of twenty-five thousand dollars (\$25,000.00) each (each, an “**Installment Payment**” and collectively, the “**Installment Payments**”). The first Installment Payment shall be due and payable thirty (30) days after the later of (i) the Effective Date and (ii) the date on which Buyer delivers to Sellers a written notice of Diligence Satisfaction (as defined in Section 1.04) (the “**First Payment Date**”). Each subsequent Installment Payment shall be due and payable on the same calendar day of each successive month thereafter, for a total of twelve (12) months. Each Installment Payment shall be made in immediately available funds by wire transfer in accordance with the wire transfer instructions set forth in **Schedule 1.02**.

(b) **Default; Cure Period.** If Buyer fails to timely deliver any Installment Payment when due, Sellers shall provide Buyer with written notice of such failure. Buyer shall have ten (10) business days after receipt of such written notice (the “**Cure Period**”) to cure such failure. If Buyer fails to cure within the Cure Period, Sellers may, at their election: (i) declare the entire remaining unpaid balance of the Purchase Price immediately due and payable; and/or (ii) pursue any and all remedies available under this Agreement or applicable law or equity, including the right to seek specific performance of Buyer’s payment obligations. The ten (10) business day cure period set forth herein constitutes Buyer’s sole opportunity to cure a payment default prior to Sellers exercising the foregoing remedies.

1.03 **Closing.** The closing of the transactions contemplated by this Agreement (the “**Closing**”) shall take place on the date that is five (5) business days following Buyer’s delivery of the Diligence Satisfaction Notice pursuant to Section 1.04 (the “**Closing Date**”), provided that Buyer has not earlier terminated this Agreement pursuant to Section 1.04. The Closing shall take place through an exchange of consideration and executed versions of assignments, instructions, documents, certificates, wire transfer instructions, and other matters necessary to effect the Closing simultaneously in different locations, using wire transfers, overnight courier service, electronic mail, facsimile transmission, and/or electronic payment. Sellers shall deliver all closing deliverables required under Section 4.01 on or before the Closing Date.

1.04 **Diligence Period; Termination Right.**

(a) **Diligence Period.** Buyer shall have forty-five (45) days from the Effective Date (the “**Diligence Period**”) to conduct such due diligence review of the Company, the Membership Interest, the Permits and Licenses, and the financial condition and regulatory standing of the Company as Buyer shall determine in its sole and absolute discretion, including, without limitation, review of financial statements, Medicare and Medicaid records, cost reports, HCSSA licensure records, outstanding audits, regulatory correspondence, accounts payable and receivable, employee records, and any pending or threatened governmental proceedings.

(b) **Access.** During the Diligence Period, Sellers shall, and shall cause the Company to, provide Buyer and its authorized representatives with reasonable access to the Company’s books, records, personnel, and facilities. Sellers shall respond to Buyer’s written due diligence requests within five (5) business days of receipt.

(c) **Termination Right.** If Buyer determines in its sole and absolute discretion that the results of its due diligence are unsatisfactory for any reason or no reason, Buyer may terminate this Agreement by delivering written notice of termination to Sellers at any time on or before the expiration of the Diligence Period (the “**Termination Notice**”). Upon delivery of a Termination Notice, this Agreement shall be null and void, no Installment Payments shall be due or owing, and neither Party shall have any further obligation to the other hereunder, except for obligations that expressly survive termination.

(d) **Diligence Satisfaction Notice.** If Buyer determines in its sole and absolute discretion that the results of its due diligence are satisfactory, Buyer shall deliver a written notice of diligence satisfaction to Sellers (the “**Diligence Satisfaction Notice**”) on or before the expiration of the Diligence Period. Failure by Buyer to

deliver either a Termination Notice or a Diligence Satisfaction Notice before the expiration of the Diligence Period shall be deemed delivery of a Diligence Satisfaction Notice on the last day of the Diligence Period.

Article 2. Representations and Warranties of Sellers

Except as set forth in any correspondingly numbered schedules (whether or not specifically referenced in the following representations and warranties of Sellers), dated as of the Closing Date, Sellers, severally and not jointly, represent and warrant to Buyer that, to the Sellers' actual knowledge, the statements contained in this Article 2 are true and correct as of the date hereof.

- 2.01 Organization and Qualification of Company.** The Company is a limited liability company, duly organized, validly existing, and in good standing under the laws of the state of Texas. The Company has all requisite entity power and authority to own, operate, or lease, the properties and assets now owned, operated, or leased by it and to carry on its business as it has been and is currently conducted. The Company is duly licensed and qualified to do business in each jurisdiction in which the properties owned or leased by it or the operation of the business as currently conducted makes such licensing or qualification necessary.
- 2.02 Ownership of Membership Interest.** Such Seller is the holder of record and owns beneficially those Membership Interest of the Company set forth opposite such Seller's name on **Schedule 2.02** free and clear of all Encumbrances.
- 2.03 Authority of Seller.** Such Seller has all requisite power, legal capacity, and authority to enter into this Agreement and to consummate the transactions contemplated hereby. The execution, delivery, and performance by such Seller of this Agreement and the documents to be delivered hereunder, and the consummation of the transactions contemplated hereby; have been duly authorized by all necessary corporate action on the part of such Seller. This Agreement and the documents to be delivered hereunder and the consummation by such Seller of the transactions contemplated hereby have been, or upon execution and delivery will be, duly and validly executed and delivered by such Seller and constitute a valid and binding obligation of such Seller enforceable against it in accordance with its terms, except as such enforceability may be limited by bankruptcy, insolvency, reorganization, moratorium or similar laws affecting creditors' rights generally and by general principles of equity (regardless of whether enforcement is sought in a proceeding at law or in equity).
- 2.04 No Conflicts.** The execution, delivery, and performance by such Seller of this Agreement and the documents to be delivered hereunder, and the consummation of the transactions contemplated hereby, do not and will not: (a) violate or conflict with the governing documents of such Seller or the Company; (b) violate or conflict with any judgment, order, decree, statute, law, ordinance, rule, or regulation applicable to such Seller or the Company; (c) conflict with, or result in (with or without notice or lapse of time or both) any violation of, or default under, or give rise to a right of termination, acceleration, or modification of, any obligation or loss of any benefit under any contract or other instrument to which Seller or the Company is a party; or (e) result in the creation or imposition of any Encumbrance on the Membership Interest.

- 2.05 **Legal Proceedings.** There is no claim, action, suit, proceeding, or governmental investigation (collectively, “**Action**”) of any nature pending or threatened: (a) against or by such Seller relating to or affecting the Membership Interest; or (b) against or by Seller or the Company that challenges or seeks to prevent, enjoin, or otherwise delay the transactions contemplated by this Agreement.
- 2.06 **Financial Statements.** True, correct, and complete copies of the balance sheets and statements of cash flows of the Company (the “**Financial Statements**”) have been made available to Buyer. The Financial Statements fairly present, in all material respects, the financial condition of the Company as of the respective dates they were prepared and the results of the operations of the Company for the periods indicated.
- 2.07 **Compliance with Laws; Permits.** The Company has been conducted, and is currently, in compliance, with all statutes, laws, ordinances, regulations, rules, codes, treaties, or other requirements of any governmental authority applicable to it or its business, properties, or assets. The Company is duly licensed to provide hospice services without limitation or restriction in the geographic areas served by the Company; however, at the time of negotiation of this Agreement, the Company is awaiting approval of its Medicaid Contract. and the Company following the Closing in connection with obtaining Medicaid certification, including by executing all required change-of-ownership applications and providing all information reasonably requested by the Texas Health and Human Services Commission or any applicable governmental authority. There are no additional permits or licenses necessary or required for the conduct of the Company’s business as currently conducted. **Schedule 2.07** sets forth a true and complete list and description (including the name of the issuing authority and holder, permit/license number and expiration date) of all permits or licenses issued to, owned or held for use by the Company, including all Medicare and Medicaid provider numbers (the “**Permits and Licenses**”).
- 2.08 **Conduct of Business Prior to Closing.** Since the date of the LOI, except as otherwise provided in this Agreement or consented to in writing by Buyer, Sellers have (a) conducted the business of the Company in the ordinary course of business; and (b) used commercially reasonable efforts to maintain and preserve intact the Company’s business organization and operations, and to preserve the rights, goodwill, and relationships of the Company’s employees, customers, lenders, suppliers, regulators and others having relationships with the Company.
- 2.09 **Taxes.** All tax returns required to be filed on or before the Closing Date by the Company have been timely filed. All such tax returns are true, correct, and complete. All taxes due and owing by the Company have been timely paid. There are no pending or threatened actions by any taxing authority.
- 2.10 **Bank Accounts.** **Schedule 2.10** sets forth a true, correct and complete list of: (i) each bank, savings and loan or similar financial institution in which the Company has an account or safety deposit box and the numbers of the accounts or safety deposit boxes maintained thereat; and (ii) the names of all persons authorized to draw on each such account or to have access to any such safety deposit box facility, together with a description of the authority (and conditions thereof, if any) of each such Person with respect thereto. Upon consummation of the Closing, Buyer shall have control of all such accounts on behalf of the Company. Ann M. Lozano and Tracy Gleason are the sole managers and officers of the Company.

- 2.11 **No Other Representations or Warranties.** Except for the representations and warranties contained in this Article 2, neither Company nor such Seller has made or makes any other express or implied representations or warranties, written or oral.

Article 3. Representations and Warranties of Buyer

Except as set forth in any correspondingly numbered schedules (whether or not specifically referenced in the following representations and warranties of Buyer), dated as of the Closing Date, Buyer represents and warrants to Sellers that the statements contained in this Article 3 are true and correct as of the date hereof.

- 3.01 **Organization and Qualification of Buyer.** Buyer is a limited liability company duly organized, validly existing, and in good standing under the laws of the state of Texas and has all requisite entity power and authority to own, lease, and operate, the properties and assets now owned, operated, or leased by it, to carry on its business as it has been and is currently conducted, and to consummate the transaction contemplated by this Agreement.
- 3.02 **Authority of Buyer.** Buyer has all requisite power, legal capacity, and authority to enter into this Agreement and to consummate the transactions contemplated hereby. The execution, delivery, and performance by Buyer of this Agreement and the documents to be delivered hereunder, and the consummation of the transactions contemplated hereby have been duly authorized by all necessary corporate action on the part of Buyer. This Agreement and the documents to be delivered hereunder and the consummation by Buyer of the transactions contemplated hereby have been, or upon execution and delivery will be, duly and validly executed and delivered by Buyer and constitute a valid and binding obligation of Buyer enforceable against it in accordance with its terms, except as such enforceability may be limited by bankruptcy, insolvency, reorganization, moratorium or similar laws affecting creditors' rights generally and by general principles of equity.
- 3.03 **No Conflicts; Consents.** The execution, delivery, and performance by Buyer of this Agreement and the documents to be delivered hereunder, and the consummation of the transactions contemplated hereby, do not and will not: (a) violate or conflict with the governing documents of Buyer; (b) violate or conflict with any judgment, order, decree, statute, law, ordinance, rule, or regulation applicable to Buyer; or (c) violate, conflict with, or result in a violation or breach of, or constitute a default (with or without due notice or lapse of time or both) under, any of the terms, conditions, or provisions of any Contract to which Buyer is a party or by which it or any of its assets is bound.
- 3.04 **Sufficiency of Funds.** Buyer has, or reasonably expects to have as of each Installment Payment due date, sufficient sources of funds available to enable it to make each Installment Payment when due.
- 3.05 **Solvency.** Immediately after giving effect to the transactions contemplated hereby, Buyer shall be solvent and shall: (a) be able to pay its debts as they become due; (b) own property that has a fair saleable value greater than the amounts required to pay its debts (including a reasonable estimate of the amount of all contingent liabilities); and (c) have adequate capital to carry on its business. No transfer of property is being made and no obligation is being incurred in connection with the transactions contemplated hereby with the intent to hinder, delay or defraud either present or future creditors of Buyer or Seller.

- 3.06 **Investment Purpose.** Buyer is acquiring the Membership Interest solely for its own account for investment purposes and not with a view to, or for offer or sale in connection with, any distribution thereof. Buyer acknowledges that the Membership Interest is not registered under the Securities Act of 1933, as amended, or registered under any state securities laws, and that the Membership Interest may not be transferred or sold except pursuant to the registration provisions of the Securities Act of 1933, as amended, or pursuant to an applicable exemption therefrom and subject to state securities laws and regulations, as applicable.
- 3.07 **Independent Investigation.** Buyer has conducted its own independent investigation, review and analysis of the Company and acknowledges that it has been provided adequate access to the personnel, properties, assets, premises, books, Financial Statements, records, and other documents and data of the Company for such purpose.
- 3.08 **Legal Proceedings.** There is no Action of any nature pending or threatened against or by Buyer that challenge or seek to prevent, enjoin or otherwise delay the transactions contemplated by this Agreement.
- 3.09 **Compliance with Other Instruments.** Buyer is not in violation or default of any provision of (a) its governing documents as in effect immediately prior to the Closing; (b) any material instrument, mortgage, deed of trust, loan, contract, commitment, judgment, decree, order, or obligation to which it is a party or by which it or any of its properties or assets are bound; (c) any federal, state, or local statute, rule, or governmental regulation.
- 3.10 **No Other Representations or Warranties.** Except for the representations and warranties contained in this Article 3, Buyer has not made and does not make any other express or implied representations or warranties, written or oral.

Article 4. Closing Deliverables

- 4.01 **Seller's Deliverables.** At the Closing, Seller shall deliver to Buyer the following:
- The Wire Transfer Instructions attached hereto as Schedule 1.02;
 - The Assignment and Assumption Agreement, in the form attached hereto as Exhibit A, executed by Sellers;
 - A copy of the Resignation of the Managers, in the form attached hereto as Exhibit B, executed by the managers of the Company;
 - Copies of the Spousal Consent(s), as applicable, in the form attached hereto as Exhibit C, executed by the spouses of the Members;
 - A copy of Company's Certifications, in the form attached hereto as Exhibit D, executed by the managers of the Company;
 - A copy of the Table of Ownership Interest, attached hereto as Schedule 2.02;
 - A copy of the Licenses and Permits held by the Company attached hereto as Schedule 2.07;
 - Copies of any disclosure schedules referred to in Article 2, attached as applicable.
- 4.02 **Buyer's Deliverables.** At the Closing, Buyer shall deliver to Sellers the following:
- The assignment and assumption agreement, in the form attached hereto as Exhibit A, executed by Buyer;

- A copy of Buyer's Certifications, in the form attached hereto as Exhibit E, executed by Buyer's governing authority;
- Copies of any disclosure schedules referred to in Article 3, attached as applicable.

Article 5. Covenants

- 5.01 Resignations.** Unless otherwise agreed by Buyer, the Company and the Sellers shall cause all directors, managers and officers of the Company to deliver their written resignations to Buyer, which resignations shall be effective on or before the Closing and attached hereto as **Exhibit C**.
- 5.02 Change of Control Filings.** The transactions contemplated hereunder will constitute a "change of control" or "change of ownership" for purposes of the Permits and Licenses and any state or federal filings. The Sellers agree to cooperate with and assist Buyer and the Company in completing all change of ownership or control filings, updates, notices and applications required to effect the change of control/ownership and/or updated ownership with respect to the Permits and Licenses and any state or federal filings. To the extent applicable, the Sellers shall provide Buyer with all information necessary to update any Permits and Licenses or state or federal filings, including any electronic password, if applicable. Buyer shall be responsible for obtaining, preparing, and filing all necessary paperwork upon Sellers' approval and execution.
- 5.03 Brokers.** Each of the Parties represents that it has dealt with no broker or finder in connection with any of the transactions contemplated by this Agreement, and, insofar as it knows, no broker or other Person is entitled to any compensation including, without limitation, a commission or finder's fee, in connection with any of these transactions. Any fees and/or costs payable to any such broker or finder shall be borne by and shall be the sole responsibility of the incurring party.
- 5.04 Arm's Length Transaction.** Each of the Parties recognizes, stipulates, and agrees that despite any previous, current, or ongoing business dealings or relationships between the Parties, this Agreement and the transactions contemplated hereby constitute an arm's length commercial transaction between the Parties. Each Party is acting solely in the capacity of an arm's length contractual counterparty; no Party is advising the other as to any legal, tax, investment, accounting, or regulatory matters; and neither Party has assumed an advisory or fiduciary responsibility to the other.
- 5.05 Assumption of Risk.** Upon and after the Closing Date, Buyer shall and hereby agrees to assume, bear and perform all the duties, obligations and liabilities arising out of, in connection with, or related to the Licenses and Permits, including (i) the payment of any costs or fees associated with holding such Licenses and Permits; (ii) the response to or defense of any audit or review conducted by agencies responsible for monitoring such Licenses and Permits; (iii) the provision of any reports or notifications required by such Licenses and Permits; and (iv) the performance of any and all other duties, obligations, and/or liabilities associated with the Licenses and Permits; provided, however, that Buyer's assumption of risk under this Section 5.05 shall not apply to any obligations or liabilities arising from acts or omissions of Sellers or the Company occurring prior to the Closing Date, which shall remain the sole obligation of Sellers pursuant to Section 7.02.

- 5.06 **Additional Agreements.** Subject to the terms and conditions of this Agreement, each of the Parties will use commercially reasonable efforts to do or cause to be taken all action and to do, or cause to be done, all things necessary, proper, or advisable under applicable laws to consummate and make effective the transactions contemplated by this Agreement.

Article 6. Tax Matters

- 6.01 **Federal Income Taxes.** The Company is a limited liability company and is taxed as a partnership for state and federal tax purposes.
- 6.02 **Transfer Taxes.** All transfer, documentary, sales, use, stamp, registration, value added and other such taxes and fees (including any penalties and interest) incurred in connection with this Agreement shall be borne and paid by Buyer when due.
- 6.03 **Allocation.** The Sellers shall be liable for all Taxes of the Sellers or the Company attributable to any taxable period that ends on or before the Closing Date; and any Taxes imposed on Seller by reason of income or gain recognition of Sellers pursuant to the Sellers' sale of the Membership Interests. Buyer shall be liable for all Taxes payable by Buyer or the Company attributable to any taxable period that ends after the Closing Date. In the case of Straddle Period Taxes, the portion allocable to Sellers shall be determined as set forth in the subsections below.
- (a) In the case of Taxes based upon income, receipts, profits, wages, capital, or net worth attributable to the Company, deemed equal to the amount which would be payable if the taxable year ended with the Closing Date; and
 - (b) In the case of other Taxes, deemed to be the amount of such taxes for the entire period multiplied by a fraction, the numerator of which is the number of days in the period ending on the Closing Date and the denominator of which is the number of days in the entire Straddle period.
- 6.04 **Cooperation.** Sellers and Buyer shall provide each other with such cooperation and information as either of them reasonably may request in filing any tax return pursuant to this Article 6 or in connection with any audit or other proceeding in respect of taxes of the Company.
- 6.05 **Close of Tax Year.** Buyer and Sellers agree that if the Company is permitted, but not required, under applicable tax law, to treat the Closing Date as the last day of a taxable period, the Buyer and Sellers shall treat such day as the last day of a taxable period.

Article 7. Indemnification

- 7.01 **Survival of Representations and Warranties.** Subject to the limitations and other provisions of this Agreement, the representations and warranties contained herein shall survive the Closing and shall remain in full force and effect until the date that is eighteen (18) months from the Closing Date. None of the covenants or other agreements contained in this Agreement shall survive the Closing Date other than those which by their terms contemplate performance after the Closing Date, and each such surviving covenant and agreement shall survive the Closing for the period contemplated by its terms.

Notwithstanding the foregoing, any claims asserted in good faith, with reasonable specificity (to the extent known at such time), and in writing, by notice from the non-breaching Party to the breaching Party, prior to the expiration date of the applicable survival period, shall not thereafter be barred by the expiration of such survival period and such claims shall survive until finally resolved.

- 7.02 **Indemnification by Seller.** Subject to the other terms and conditions of this Article 7, Sellers shall indemnify Buyer against, and shall hold Buyer harmless from and against, any and all actual out-of-pocket losses, damages, liabilities, costs, or expenses, including reasonable attorney's fees ("**Loss(es)**") incurred or sustained by, or imposed upon, Buyer based upon, arising out of, with respect to, or by reason of: (i) any inaccuracy in or breach of any of the representations or warranties of Sellers contained in this Agreement; (ii) any breach or non-fulfillment of any covenant, agreement or obligation to be performed by Sellers pursuant to this Agreement; or (iii) any pre-Closing obligations, liabilities, audits, cost report settlements, overpayment demands, or regulatory proceedings relating to the Company's operations prior to the Closing Date.
- 7.03 **Indemnification by Buyer.** Subject to the other terms and conditions of this Article 7, Buyer shall indemnify Sellers against, and shall hold Sellers harmless from and against, any and all Losses incurred or sustained by, or imposed upon Sellers based upon, arising out of, with respect to, or by reason of (i) any inaccuracy in or breach of any of the representations or warranties of Buyer contained in this Agreement; or (ii) any breach or non-fulfillment of any covenant, agreement, or obligation to be performed by Buyer pursuant to this Agreement.
- 7.04 **Certain Limitations.** The Party making a claim under this Article 7 is referred to as the "**Indemnified Party**" and the Party against whom such claims are asserted under this Article 7 is referred to as the "**Indemnifying Party**". The indemnification provided for in Sections 7.02 and 7.03 shall be subject to the following limitations:
- (a) The Indemnifying Party shall not be liable to the Indemnified Party for indemnification under Section 7.02 or 7.03, as the case may be, until the aggregate amount of all Losses in respect of indemnification under Section 7.02 or 7.03 exceeds five thousand dollars (\$5,000.00) (the "**Deductible**"), in which event the Indemnifying Party shall only be required to pay or be liable for Losses in excess of the Deductible.
 - (b) The aggregate amount of all Losses for which an Indemnifying Party shall be liable pursuant to Section 7.02 or 7.03, as the case may be, shall not exceed the Purchase Price (\$300,000.00).
 - (c) Payments by an Indemnifying Party pursuant to Section 7.02 or Section 7.03 in respect of any Loss shall be limited to the amount of any liability or damage that remains after deducting therefrom any insurance proceeds and any indemnity, contribution or other similar payment received or reasonably expected to be received by the Indemnified Party (or the Company) in respect of any such claim.
 - (d) Payments by an Indemnifying Party pursuant to Section 7.02 or 7.03 in respect of any Loss shall be reduced by an amount equal to any tax benefit realized or reasonably expected to be realized as a result of such Loss by the Indemnified Party.

- (e) In no event shall any Indemnifying Party be liable to any Indemnified Party for any consequential, punitive, special, incidental, or indirect damages, including loss of future revenue or income, loss of business reputation, or opportunity relating to the breach or alleged breach of this Agreement.
- (f) Each indemnified Party shall take all reasonable steps to mitigate any Loss upon becoming aware of any event or circumstance that would reasonably be expected to, or does, give rise thereto.
- (g) Seller shall not be liable under this Article 7 for any Losses based upon or arising out of any inaccuracy in or breach of any of the representations or warranties of Seller contained in this Agreement if Buyer had knowledge of such inaccuracy or breach prior to the Closing.

7.05 Indemnification Procedures. As a condition of its right to be indemnified, an Indemnified Party shall provide an Indemnifying Party prompt written notice of the matter for which such indemnification is sought. For purposes hereof, prompt written notice shall mean as soon as reasonably practicable under the circumstances, but, in any event, not later than thirty (30) days after the Indemnified Party learns, or should have known of such Claim. The failure to so notify an Indemnifying Party shall relieve the Indemnifying Party of its obligations hereunder only to the extent that the Indemnifying Party is actually and materially prejudiced by such failure.

7.06 Tax Treatment. All indemnification payments made under this Agreement shall be treated by the Parties as an adjustment to the Purchase Price for tax purposes, unless otherwise required by applicable law.

7.07 Exclusive Remedies. Subject to Section 8.17, the Parties acknowledge the exclusive remedy with respect to any and all claims (other than claims arising from intentional fraud) for any breach of any representation, warranty, covenant, agreement or obligation set forth herein or otherwise relating to the subject matter of this Agreement, shall be pursuant to the indemnification provisions set forth in this Article 7. Nothing in this Section 7.07 shall limit any Party's right to seek equitable relief pursuant to Section 8.17 or to seek any remedy on account of intentional fraud by any Party hereto.

Article 8. Miscellaneous

8.01 Expenses. Except as otherwise expressly provided herein, all costs and expenses, including, without limitation, fees and disbursements of counsel, financial advisors, and accountants, incurred in connection with this Agreement and the transactions contemplated hereby shall be paid by the party incurring such costs and expenses, whether or not the Closing shall have occurred; provided, however, that Buyer shall be responsible for all filing and other similar fees payable in connection with any filings or submissions to any state or federal agency for Permits and Licenses and Sellers shall be responsible for all obligations of Company incurred prior to the Closing Date.

8.02 Sellers' Representative. Sellers hereby appoint Ann M. Lozano to be the "**Sellers' Representative**" hereunder. Each Seller hereby agrees to grant to Sellers' Representative a power of attorney to take such actions and make such decisions as necessitated by this Agreement, including the power to give and receive notices and other communications; and to execute and deliver all documents necessary to carry out the intent of this

Agreement. Notwithstanding the foregoing, the Sellers' Representative shall not have authority to amend, modify, or waive any material term of this Agreement without the prior written consent of all Sellers and Buyer.

8.03 Further Assurances. Each of the Parties hereto shall, and shall cause its respective affiliates to, from time to time, at the request and sole expense of the requesting Party, furnish the other Party such further information or assurances; execute and deliver such additional documents, instruments, and conveyances; and take such other actions and do such other things, as may be necessary or appropriate to carry out the provisions of this Agreement and give effect to the transactions contemplated hereby.

8.04 Notices. All notices, requests, claims, consents, demands, waivers, and other communications hereunder shall be in writing and shall be deemed to have been given: (i) when delivered by hand (with written confirmation of receipt); (ii) when received by the addressee if sent by nationally recognized courier (receipt requested); (iii) on the fifth (5th) day after the date mailed, by certified mail, return receipt requested; or (iv) on the date sender receives an automated read receipt notice if sent by electronic mail. Such communications must be sent to the respective Parties at the following addresses:

If to Buyer:

Tyler Hospice Hold, LLC
700 N Main Street
Lindale, Texas 75771
Attn: Geoff Schackmann
Email: [Email Address] Gs@h-care.us

If to Sellers' Representative:

Ann M. Lozano
6203 Welles Creek Drive
San Antonio, Texas 78240
Email: ann@forte-cg.com

With a copy to (which shall not constitute notice):

Greiner & Associates PLLC
401 Austin Highway, Suite 200
San Antonio, Texas 78209
Attn: Jon Greiner
Email: jon@greinerattorneys.com

If to a Seller, to such Seller at the address set forth for such Seller on **Schedule 2.02** to this Agreement.

8.05 Interpretation and Construction. For purposes of this Agreement: (i) the words "include," "includes," and "including" shall be deemed to be followed by the words "without limitation"; (ii) the word "or" is not exclusive; (iii) the words "herein," "hereof," "hereby," "hereto" and "hereunder" refer to this Agreement as a whole; (iv) references to "this Agreement" include any and all exhibits, schedules, or certifications attached hereto; and (v) any and all notice or communications required under this Agreement must be sent in accordance with Section 8.04. The Parties have participated jointly in the negotiation and drafting of this Agreement. If an ambiguity or question of

intent or interpretation arises, this Agreement shall be construed as if drafted jointly by the Parties and no presumption or burden of proof shall arise favoring or disfavoring any Party because of the authorship of any provision of this Agreement.

- 8.06 **Exhibits and Schedules.** Each exhibit, certificate, and schedule to this Agreement shall be considered a part hereof as if set forth herein in full.
- 8.07 **Headings.** The paragraph headings and section titles contained herein are intended for convenience of reference only and shall not affect the interpretation of this Agreement.
- 8.08 **Severability.** If any provision of this Agreement is held to be illegal, invalid or unenforceable under present or future laws effective during the term of this Agreement, such provision shall be fully severable and the remaining provisions of this Agreement shall remain in full force and effect.
- 8.09 **Successors and Assigns.** This Agreement shall be binding upon and shall inure to the benefit of the Parties and their respective successors and permitted assigns. Neither Party may assign its rights or obligations hereunder without the prior written consent of the other Party. No assignment shall relieve the assigning Party of any of its obligations hereunder.
- 8.10 **No Third-Party Beneficiaries.** Except as provided in Article 7, this Agreement is for the sole benefit of the Parties hereto and their respective successors and permitted assigns and nothing herein, express or implied, is intended to or shall confer upon any other Person or entity any legal or equitable rights, benefit, or remedy of any nature whatsoever under or by reason of this Agreement.
- 8.11 **Amendment and Modification.** This Agreement may only be amended, modified, or supplemented by an agreement in writing signed by each Party hereto.
- 8.12 **Waiver.** No waiver by any Party of any of the provisions hereof shall be effective unless explicitly set forth in writing and signed by the Party so waiving. No failure to exercise, or delay in exercising, any right, remedy, power, or privilege arising from this Agreement shall operate or be construed as a waiver thereof.
- 8.13 **Governing Law.** This Agreement shall be governed by and construed in accordance with the laws of the State of Texas without giving effect to any choice or conflict of law provision or rule.
- 8.14 **Submission to Jurisdiction.** Subject to the provisions of Section 8.16, any legal suit, action or proceeding arising out of or based upon this Agreement or the transactions contemplated hereby, may be instituted in the courts of the State of Texas in each case located in the City of San Antonio and the County of Bexar. EACH PARTY IRREVOCABLY SUBMITS TO THE EXCLUSIVE JURISDICTION OF SUCH COURTS IN ANY SUCH SUIT, ACTION OR PROCEEDING. THE PARTIES IRREVOCABLY AND UNCONDITIONALLY WAIVE ANY OBJECTION TO THE LAYING OF VENUE OF ANY SUIT, ACTION OR ANY PROCEEDING IN SUCH COURTS AND IRREVOCABLY WAIVE AND AGREE NOT TO PLEAD OR CLAIM IN ANY SUCH COURT THAT ANY SUCH SUIT, ACTION OR PROCEEDING BROUGHT IN ANY SUCH COURT HAS BEEN BROUGHT IN AN INCONVENIENT FORUM.
- 8.15 **Waiver of Jury Trial.** FOR ANY ACTION OR PROCEEDING ARISING OUT OF OR IN CONNECTION WITH THIS AGREEMENT, EACH PARTY HEREBY

IRREVOCABLY WAIVES ALL RIGHTS TO TRIAL BY JURY IN ANY SUCH ACTION PERMITTED HEREUNDER.

- 8.16 **Dispute Resolution.** Notwithstanding anything to the contrary in this Agreement, the Parties hereby agree to resolve any Dispute, controversy, or claim arising out of or relating to this Agreement (each, a “**Dispute**”), under the provisions of this Section 8.16. Good faith participation in negotiation, followed by good faith participation in mediation, are express conditions precedent to binding arbitration.
- (a) **Negotiations.** Any Party may initiate negotiations by giving the other Party written notice (the “**Negotiation Notice**”) detailing the matter in dispute, the noticing Party’s position, and a suggested resolution. The receiving Party shall send a written response within fifteen (15) days of receipt. The Parties’ representatives shall negotiate for at least one (1) session of at least three (3) hours, to be held no later than thirty (30) days after the Negotiation Notice.
 - (b) **Mandatory Mediation.** To the extent the Dispute has not been resolved by negotiation, any Party may initiate mediation if at least fifteen (15) days have passed since the negotiation session and the Dispute remains unresolved. The mediator will be chosen by mutual agreement of the Parties. If the Parties cannot agree within ten (10) days of service of the mediation response, the Parties will each select their own mediator (each a “**Qualified Mediator**”, having at least five (5) years’ experience resolving commercial business disputes as a mediator in the greater San Antonio, Texas area), and the two Qualified Mediators shall select a third Qualified Mediator as sole mediator. The Parties agree to participate in at least one (1) full-day mediation session. The mediation shall be held in San Antonio, Texas.
 - (c) **Mandatory Binding Arbitration.** To the extent the Dispute has not been resolved by negotiation followed by mediation, such Dispute shall be submitted to final binding arbitration before an arbitral body selected by the Parties (the “**Administering Agency**”), or, if they cannot agree, the American Arbitration Association. The arbitration shall be conducted before a panel of three (3) neutral arbitrators with expertise in business mergers and acquisitions and, if related to the Dispute, healthcare and/or hospice. The arbitration hearings shall be conducted in San Antonio, Texas. The decision or award of the arbitrator(s) shall be final and binding. The arbitrators shall have full authority to order specific performance and award damages available under this Agreement, but shall have no authority to add to, detract from, change, or amend the terms of this Agreement.
- 8.17 **Specific Performance.** The Parties agree that irreparable damage would occur if any provision of this Agreement were not performed in accordance with the terms hereof and that the Parties shall be entitled to the specific performance of the terms hereof, in addition to any other remedy to which they are entitled at law or in equity.
- 8.18 **Counterparts.** This Agreement may be executed in counterparts, each of which shall be deemed an original, but all of which together shall be deemed to be one and the same agreement. A signed copy of this Agreement delivered by facsimile, email, or other means of electronic transmission shall be deemed to have the same legal effect as delivery of an original signed copy of this Agreement.

8.19 **Entire Agreement.** This Agreement and its Exhibits and Schedules constitute the entire agreement of the Parties, and it supersedes all other prior and contemporaneous verbal or written agreements, representations, and promises.

BY SIGNING BELOW, each Party enters into this Agreement. Each Person signing this Agreement represents and warrants that he or she has been duly authorized to enter into this Agreement on whose behalf it is indicated that the Person is signing.

IN WITNESS WHEREOF, the Parties hereto have caused this Agreement to be executed, through duly authorized representatives, as of the Effective Date.

[Signatures on Following Page]

BUYER:

Tyler Hospice Hold, LLC, a Texas limited liability company

By: Geoff Schackmann 17 April 2026

Name: Geoff Schackmann

Title: Managing Member

THE COMPANY:

HICKORY HOSPICE LLC

By: Ann Lozano

Name: Ann Lozano

Title: Owner

SELLERS:

Tracy Gleason 17 April 2026

Tracy Gleason

Ann Lozano 17 April 2026

Ann Lozano

Ann Lozano

Attachments

Schedule 1.02 — Wire Transfer Instructions

Schedule 2.02 — Table of Membership Interest

Schedule 2.07 — Licenses and Permits

Schedule 2.10 — Bank Accounts

Exhibit A — Assignment of Membership Interest

Exhibit B — Resignation of the Manager(s)

Exhibit C — Spousal Consent

Exhibit D — Company's Certification

Exhibit E — Buyer's Certification